

HOUSE BILL 1261

By Jones J

AN ACT to amend Tennessee Code Annotated, Title 39,
Chapter 14; Title 40, Chapter 39; Title 43; Title 44
and Title 53, relative to the treatment of animals.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 39, Chapter 14, Part 2, is amended by
adding the following as a new section:

(a) As used in this section:

(1) "Breeding pig" means any female pig, kept for the purpose of
commercial breeding, that is six (6) months of age or older, or pregnant;

(2) "Calf raised for veal" means any calf of a bovine species kept for the
purpose of producing veal;

(3) "Enclosure" means any structure used to confine a breeding pig or
calf raised for veal;

(4) "Farm"

(A) Means the land and the buildings, support facilities, and
equipment thereon, that are wholly or partially used for the commercial
production of agricultural food products, or animals or animal products
used for food or fiber; and

(B) Does not include live animal markets;

(5) "Farm owner or operator" means any person who owns or operates a
farm in this state; and

(6) "Useable floor space" means the total square footage of floor space
provided to a breeding pig or a calf raised for veal, calculated by dividing the total

square footage of floor space in the enclosure by the number of pigs or calves, as applicable, kept in the enclosure.

(b) Except as provided in subsection (c), it is an offense for a farm owner or operator to knowingly confine a breeding pig or a calf raised for veal:

(1) In a manner that prevents the animal from:

(A) Lying down;

(B) Standing up;

(C) Fully extending all of the animal's limbs without touching the side of an enclosure or another animal; or

(D) Turning in a complete circle without any impediment, including a tether, and without touching the side of an enclosure or another animal;

(2) In the case of a breeding pig, within an enclosure with less than twenty-four square feet (24 sq. ft.) of useable floor space per breeding pig; or

(3) In the case of a calf raised for veal, within an enclosure with less than forty-three square feet (43 sq. ft.) of useable floor space per calf.

(c) It is not an offense under this section, if the confinement occurs during:

(1) The conduct of medical research;

(2) The conduct of an examination, testing, individual treatment, or surgery for veterinary purposes;

(3) Transportation of the animal;

(4) A state or county fair exhibition;

(5) A 4-H program, or similar exhibition;

(6) Temporary periods for animal husbandry purposes, provided the confinement is for no more than six (6) hours in a twenty-four-hour period and no more than a total of twenty-four (24) hours in a thirty-day period;

(7) Humane slaughtering of the animal in accordance with all applicable laws and rules; or

(8) For a breeding pig, the five-day period prior to the expected date of the breeding pig giving birth or any day the breeding pig is nursing piglets.

(d) It is not an affirmative defense to an alleged violation of this section that a breeding pig or calf raised for veal is domestic livestock, or was kept as part of an agricultural operation or in accordance with customary animal husbandry or farming practices.

(e) A violation of this section is a Class B misdemeanor subject to a minimum fine of two hundred fifty dollars (\$250) nor more than one thousand dollars (\$1,000) for each offense. Each breeding pig or calf raised for veal confined in an enclosure in violation of subsection (b) constitutes a separate offense.

(f) This section does not supersede or limit the applicability of a local, federal, or state law, rule, or regulation protecting animal welfare, or prevent any local government legislative body from adopting or enacting any ordinance or resolutions concerning the protection and welfare of animals that are more stringent than this section.

SECTION 2. This act takes effect July 1, 2030, the public welfare requiring it.